

Appellant’s notice

Appeals to the Family Division of the High Court

For Court use only	
Name of court	Family Division of the High Court
Appeal Court Ref. No.	
Date filed	

Notes for guidance **FP161A** are available which will help you complete this form. Please read them carefully before you complete each section.



Help with Fees - Ref no. (if applicable)	H W F - -
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1. Details of the case you are appealing against

Case no.	Fee Account no.

2. Details of the appeal

From which court is the appeal being brought?

☐ The Family Court at	
☐ Family Division of the High Court sitting in the Principal Registry or District Registry at	

What is the status and name of the Judge whose decision you want to appeal?

Status	Name
If the appeal is from the Family Court	
☐ Circuit Judge	
☐ Recorder	
☐ District Judge or (Deputy District Judge) of the Principal Registry of the Family Division (financial remedy appeals only)	
If the appeal is from the Family Division of the High Court	
☐ District Judge or (Deputy District Judge) of the Principal Registry of the Family Division	
☐ District Judge or (Deputy District Judge) of the District Registry of the High Court	
☐ Costs Judge (or deputy)	

What is the date of the decision you wish to appeal against?

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What is the nature of the decision you wish to appeal?

- ☐ Case management decision
- ☐ Grant or refusal of an interim order
- ☐ Final decision

3. Details of the parties in the appeal

Name(s) of the ☐ Applicant(s) ☐ Petitioner(s)

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Name(s) of the Respondent(s)

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Details of the party appealing ('The Appellant')

Name

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Address (including postcode)

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Phone no.

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Fax

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E-mail

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Details of the Respondent(s) to the appeal

RESPONDENT 1

Name

Address (including postcode)

Phone no.

Fax

E-mail

RESPONDENT 2

Name

Address (including postcode)

Phone no.

Fax

E-mail

RESPONDENT 3

Name

Address (including postcode)

Phone no.

Fax

E-mail

Details of any further additional parties are attached

☐ Yes ☐ No

How many additional parties' details are provided

4. Legal representation

Are you legally represented?

☐ Yes

☐ No

If 'Yes', please give details of your solicitor below

Name of the firm of solicitors representing you

Address (including postcode)

Phone no.

Fax

DX

Ref.

E-mail

Are you, the Appellant, in receipt of a Legal Aid Certificate or a Community Legal Service Fund (CLS F) certificate?

☐ Yes

☐ No

Is/Are the respondent(s) legally represented?

☐ Yes

☐ No

If 'Yes', please give solicitor details below

Legal representative for respondent 1

Name

Address (including postcode)

Phone no.

Fax

DX

Ref.

E-mail

Legal representative for respondent 2

Name

Address (including postcode)

Phone no.

Fax

DX

Ref.

E-mail

Legal representative for respondent 3

Name

Address (including postcode)

Phone no.

Fax

DX

Ref.

E-mail

5. Permission to appeal

Do you need permission to appeal?

☐ Yes

☐ No

Has permission to appeal been granted?

☐ **Yes** (Complete Box A)

☐ **No** (Complete Box B)

Box A

Date of order granting permission

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Name of Judge granting permission

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Box B

I

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the Appellant('s solicitor) seek permission to appeal.

If permission to appeal has been granted **in part** by the lower court, do you seek permission to appeal in respect of the grounds refused by the lower court?

☐ Yes

☐ No

6. Other information required for the appeal

Please set out the order (or part of the order) you wish to appeal against

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Have you lodged this notice with the court in time?
(see Guidance Notes FP161A)

☐ Yes

☐ No

If '**No**' you must also complete
Part B of Section 10

7. Grounds of appeal

Please state, in numbered paragraphs, **on a separate sheet** attached to this notice and entitled 'Grounds of Appeal' (also in the top right hand corner add your case number and full name), a short summary of the reasons why you are saying that the Judge who made the order you are appealing was wrong.

☐ I confirm that the grounds of appeal are attached to this notice.

8. Arguments in support of grounds for appeal

☐ I confirm that the arguments (known as a 'Skeleton Argument') in support of the 'Grounds of Appeal' are set out **on a separate sheet** and attached to this notice.

OR

☐ I confirm that the argument (known as a 'Skeleton Argument') in support of the 'Grounds of Appeal' **will follow within 14 days** of filing this Appellant's notice.

9. What are you asking the appeal court to do?

I am asking the appeal court to:- (please tick the appropriate box)

☐ set aside the order which I am appealing

☐ vary the order which I am appealing and substitute the following order. Set out in the following space the order you are asking for:-

☐ order a re-hearing

10. Other applications

Complete this section **only** if you are making any additional applications.

Part A

- ☐ I apply for a stay of execution to stop the order being implemented until after my appeal has been decided. (You must set out in Section 11 your reasons for seeking a stay of execution and evidence in support of your application.)

Part B

- ☐ I apply for a stay of proceedings to stop further steps being taken in the case until after my appeal has been decided. (You must set out in section 11 your reasons for seeking a stay or the proceedings and evidence in support of your application.)

Part C

- ☐ I apply for an extension of time for filing my appeal notice. (You must set out in Section 11 the reasons for the delay and what steps you have taken since the decision you are appealing.)

Part D

- ☐ I apply for an order that:

(You must set out in Section 11 your reasons and your evidence in support of your application.)

11. Evidence in support

In support of my application(s) in Section 10, I wish to rely upon the following reasons and evidence as set out

☐ in the attached witness statement

☐ in the space below

Statement of Truth – This must be completed in support of the evidence in Section 10

I believe/The appellant believes that the facts stated in this section are true.

Full name

Name of appellant's solicitor's firm

signed

Nadia Zahmoul

Appellant/Appellant's solicitor

position or office held

(if signing on behalf of firm or company)

12. Supporting documents

To support your appeal you must file with this notice all relevant documents listed below. To show which documents you are filing, you must tick the appropriate boxes.

If you do not have a document that you intend to use to support your appeal you must complete the box over the page.

- ☐ a sealed or stamped copy of the appellant's notice, including the grounds of appeal and copies for each respondent;
- ☐ a sealed or stamped copy of the order being appealed;
- ☐ a transcript or note of judgment;
- ☐ copies of any documents specifically referred to in the judgment;
- ☐ a copy of the appellant's skeleton arguments in support of the appeal or application for permission to appeal and copies for each respondent;
- ☐ a copy of any witness statement in support of any application included in the appellant's notice;
- ☐ a copy of any order giving or refusing permission to appeal; together with a copy of the judge's reasons for allowing or refusing permission to appeal; and
- ☐ a copy of the legal aid or CLSF certificate (if legally represented).

DO NOT file any other document unless the court directs you to.

In addition to the documents listed above you must include the following if appropriate:

- ☐ **Form EX160:** If you cannot afford the court fee you may be able to apply for a fee remission. To apply for help with fees, or for further information, you can visit gov.uk/get-help-with-court-fees. If you do not have access to the internet, you will be able to get a paper form (**EX160 – Apply for help with fees**) from court staff at any family court office.
- ☐ **Form EX105:** If you need to apply for a copy of a transcript and/or judgment at public expense you must return this form at the same time as your appellant's notice. If you have also applied for help with fees (and been successful in your application) this does not automatically mean you will be granted a copy of your transcript and/or judgment at public expense.

ALL additional forms must be submitted at the same time as your appellant's notice.

Reasons why you have not supplied a document and date when you expect it to be available:-

Title of document and reason not supplied	Date when it will be supplied <i>(If you need more than 14 days you must explain why)</i>

13. The notice of appeal must be signed here

Signed

Nadia Zahmoul

Appellant/Appellent’s Solicitor

Please check you have included all documents you have ticked in Section 12 before returning this form to:
Family Division Appeals Office, Floor 1M, Queen’s Building, Royal Courts of Justice, Strand, London, WC2A 2LL
DX 44450 Strand
Email: appeals.familydivision@justice.gov.uk

Failure to provide the required documents could delay your appeal or lead to it being summarily dismissed